

SOFTWARE SUBSCRIPTION AND SERVICES AGREEMENT

This Software Subscription and Services Agreement (the "Agreement") is entered into as of April 1, 2026 (the "Effective Date"), by and between Red Oak Analytics, Inc., a Delaware corporation with offices at 410 River Market Plaza, Wilmington, Delaware 19801 ("Supplier"), and Northwind Retail Ltd., an Irish private company limited by shares with offices at 22 Fitzwilliam Square South, Dublin 2, Ireland ("Customer"). Supplier and Customer may each be referred to herein as a "Party" and together as the "Parties."

Supplier provides a hosted software platform and related implementation, support, and advisory services. Customer desires to purchase access to the platform and related services, and Supplier desires to provide them, in each case subject to the terms and conditions of this Agreement.

1. Definitions

1.1 "Affiliate" means, with respect to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party.

1.2 "Customer Data" means all data, records, files, documents, text, images, and other content submitted to, stored in, transmitted through, or generated by Customer or its authorized users through the Services.

1.3 "Documentation" means Supplier's user guides, technical manuals, and operating instructions for the Services, as updated by Supplier from time to time.

1.4 "Order Form" means any ordering document, statement of work, or online order accepted by Supplier that references this Agreement.

1.5 "Professional Services" means implementation, configuration, migration, training, consulting, and other professional services described in an Order Form.

1.6 "Services" means the hosted software platform, Documentation, support, Professional Services, and any related deliverables provided by Supplier under this Agreement.

2. Services

2.1 Subject to the terms of this Agreement, Supplier grants Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to permit its employees, contractors, and representatives to access and use the Services for Customer's internal business purposes in accordance with the Documentation and any applicable Order Form.

2.2 Supplier will use commercially reasonable efforts to perform the Professional Services in a professional and workmanlike manner. Unless otherwise stated in an Order Form, all project timelines are estimates only.

2.3 Supplier may update, modify, replace, or discontinue features of the Services at any time, provided that Supplier uses commercially reasonable efforts to avoid a material reduction in the core functionality identified in the applicable Order Form.

3. Customer Obligations

3.1 Customer is responsible for all activity conducted through its accounts and credentials and will use reasonable efforts to prevent unauthorized access to the Services.

3.2 Customer will provide timely cooperation, personnel, access, information, and decisions reasonably requested by Supplier for performance of the Services.

3.3 Customer will use the Services in compliance with applicable laws and regulations and will not upload, transmit, or process content that infringes third-party rights or violates applicable law.

4. Term and Renewal

4.1 This Agreement begins on the Effective Date and will remain in effect for an initial term of thirty-six (36) months, unless earlier terminated in accordance with this Agreement.

4.2 Upon expiration of the initial term, this Agreement will automatically renew for successive renewal terms of twelve (12) months each unless Customer delivers written notice of non-renewal to Supplier at least sixty (60) days before the end of the then-current term.

5. Fees and Payment

5.1 Customer will pay the fees set out in the applicable Order Form. Except as expressly stated otherwise, all fees are non-cancellable and non-refundable.

5.2 Supplier may invoice subscription fees annually in advance and Professional Services fees monthly in arrears. Any undisputed amount not paid when due will accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by law, plus reasonable collection costs.

5.3 Supplier may increase recurring subscription fees once in any twelve (12) month period upon at least thirty (30) days' prior written notice to Customer. Any increase to recurring fees for the same Services during the then-current term will not exceed nine percent (9%), except to reflect changes in taxes, third-party pass-through costs, or Customer's usage levels. Continued access to or use of the Services after the effective date of the revised pricing will constitute Customer's acceptance of the revised fees.

5.4 Fees are exclusive of taxes, duties, levies, or similar governmental assessments, all of which will be paid by Customer, excluding taxes based on Supplier's net income.

6. Customer Data and Security

6.1 As between the Parties, Customer retains all right, title, and interest in and to Customer Data, subject to the rights granted to Supplier under this Agreement.

6.2 Customer grants Supplier and its Affiliates a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free right to host, copy, store, modify, adapt, translate, create derivative works from, analyze, aggregate, disclose, commercialize, sell, license, and otherwise exploit Customer Data and any data derived from Customer's use of the Services for any business purpose, whether during or after the Term, provided that Supplier will not intentionally identify Customer by name in public marketing materials without Customer's prior written consent.

6.3 Supplier will maintain commercially reasonable administrative, technical, and physical safeguards designed to protect Customer Data against unauthorized access, use, or disclosure.

7. Confidentiality

7.1 Each Party receiving Confidential Information from the other Party will use that Confidential Information solely for purposes of performing or exercising rights under this Agreement and will not disclose it to any third party except to its employees,

contractors, advisers, and Affiliates who have a need to know and are bound by confidentiality obligations at least as protective as those set out herein.

7.2 The obligations in this Section do not apply to information that the receiving Party can demonstrate: (a) is or becomes publicly available through no breach of this Agreement; (b) was lawfully known to the receiving Party without restriction before receipt from the disclosing Party; (c) is lawfully received from a third party without restriction; or (d) is independently developed without use of the disclosing Party's Confidential Information.

7.3 The receiving Party may disclose Confidential Information to the extent required by law, subpoena, or court order, provided that, where legally permitted, the receiving Party gives prompt notice to the disclosing Party and reasonable cooperation at the disclosing Party's expense.

8. Intellectual Property

8.1 Supplier and its licensors retain all right, title, and interest in and to the Services, Documentation, Professional Services deliverables, and all related intellectual property rights. No rights are granted to Customer except as expressly stated in this Agreement.

8.2 To the extent Customer provides suggestions, enhancement requests, recommendations, or other feedback relating to the Services, Customer grants Supplier a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free license to use and exploit such feedback without restriction or obligation.

9. Support and Service Levels

9.1 Supplier will provide standard remote support during Supplier's normal business hours, excluding weekends and public holidays observed in Delaware, unless otherwise stated in an Order Form.

9.2 Supplier may perform scheduled or emergency maintenance that temporarily interrupts the Services. Supplier will use commercially reasonable efforts to provide advance notice of scheduled maintenance where practicable.

9.3 Any service levels, response times, or uptime commitments set out in an Order Form are Customer's sole and exclusive remedies for performance issues relating to the Services.

10. Audit Rights

10.1 Upon not less than five (5) business days' prior notice, Supplier or its designated third-party auditor may inspect and audit Customer's books, records, systems, facilities, and security controls to verify Customer's compliance with this Agreement, including Customer's use of the Services, record retention practices, and compliance with applicable law. Such audits may occur up to two (2) times in any twelve-month period, except that Supplier may conduct additional audits if Supplier reasonably suspects a material breach of this Agreement or a material legal or regulatory non-compliance.

10.2 Customer will provide Supplier with reasonable access, workspace, documentation, and knowledgeable personnel necessary to complete the audit, subject to Customer's reasonable security policies. If an audit identifies any material non-compliance, Customer will promptly reimburse Supplier for the reasonable audit costs and pay any undercharged amounts, together with interest under Section 5.2.

11. Indemnification

11.1 Customer will defend, indemnify, and hold harmless Supplier, its Affiliates, and their respective officers, directors, employees, contractors, and agents from and against any and all claims, actions, damages, losses, liabilities, judgments, settlements, fines, penalties, costs, and expenses, including reasonable attorneys' fees, arising out of or relating to: (a)

Customer Data; (b) Customer's or any authorized user's use of the Services; (c) Customer's business operations or regulatory obligations; (d) allegations that Supplier's processing, storage, disclosure, or use of Customer Data in accordance with this Agreement violates law or third-party rights; or (e) Supplier's compliance with Customer's instructions, except to the extent a final, non-appealable court judgment determines that the claim resulted solely from Supplier's fraud or willful misconduct.

11.2 Supplier will defend Customer against any third-party claim alleging that the Services, when used by Customer in accordance with this Agreement, directly infringe a United States patent, copyright, or trademark, and Supplier will pay damages finally awarded against Customer by a court of competent jurisdiction or agreed in settlement by Supplier, provided that Customer promptly notifies Supplier of the claim, grants Supplier sole control of the defense and settlement, and provides reasonable assistance at Supplier's expense. Supplier will have no obligation under this Section for claims arising from Customer Data, combinations not supplied by Supplier, modifications not made by Supplier, or use of the Services after notice of alleged infringement.

11.3 If the Services become, or in Supplier's opinion are likely to become, subject to an infringement claim, Supplier may, at its option: (a) procure the right for Customer to continue using the affected Services; (b) modify or replace the affected Services; or (c) terminate the affected Services and refund the unused portion of prepaid subscription fees for the terminated portion of the Services. This Section 11 sets out Supplier's sole and exclusive liability, and Customer's sole and exclusive remedy, for any third-party intellectual property claim.

12. Limitation of Liability

12.1 To the maximum extent permitted by law, Supplier's aggregate liability arising out of or relating to this Agreement, whether in contract, tort, or otherwise, will not exceed the total fees paid by Customer to Supplier under this Agreement during the one (1) month period immediately preceding the event giving rise to the claim.

12.2 To the maximum extent permitted by law, Supplier will not be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages, or for any loss of profits, revenues, goodwill, business opportunity, anticipated savings, data, or use, even if advised of the possibility of such damages and even if a remedy fails of its essential purpose.

12.3 The limitations in this Section apply on a cumulative basis and will not apply to Customer's payment obligations, Customer's obligations under Sections 6.2, 10, or 11, or Customer's unauthorized use of the Services.

13. Suspension and Termination

13.1 Supplier may suspend Customer's access to the Services immediately, in whole or in part, without liability, if Supplier reasonably suspects: (a) a breach of this Agreement; (b) a security incident or threat; (c) fraudulent or unlawful activity; (d) non-payment; or (e) conduct that may expose Supplier or the Services to reputational harm.

13.2 Supplier may terminate this Agreement or any Order Form on written notice if Customer materially breaches this Agreement and fails to cure within five (5) days after notice, or if Supplier determines in good faith that continued provision of the Services is commercially impracticable, inconsistent with Supplier policy, or likely to create legal, regulatory, or reputational risk for Supplier.

13.3 Customer may terminate this Agreement only if Supplier materially breaches this Agreement and fails to cure within thirty (30) days after receiving written notice from Customer. No termination by Customer will relieve Customer of its obligation to pay all fees due for the remainder of the then-current term, and prepaid fees will not be refunded.

14. Assignment and Subcontracting

14.1 Supplier may assign this Agreement, in whole or in part, without Customer's consent to an Affiliate or in connection with a merger, acquisition, corporate reorganization, sale of substantially all of its assets, or financing transaction. Supplier may subcontract portions of the Services, provided that Supplier remains responsible for the performance of its subcontractors.

14.2 Customer may not assign or transfer this Agreement, whether by operation of law or otherwise, without Supplier's prior written consent. Any purported assignment in violation of this Section is void.

15. Governing Law and Dispute Resolution

15.1 This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws principles.

15.2 Any dispute arising out of or relating to this Agreement will be brought exclusively in the state or federal courts located in Wilmington, Delaware, and each Party irrevocably submits to the personal jurisdiction and venue of those courts.

15.3 Each Party waives any right to trial by jury in any action or proceeding arising out of or relating to this Agreement.

16. General

16.1 All notices under this Agreement must be in writing and will be deemed given when delivered by hand, reputable overnight courier, or email with confirmation of transmission to the addresses first set out above or to such other address as a Party may later designate by notice.

16.2 This Agreement, together with all Order Forms, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, proposals, discussions, and communications relating to that subject matter.

16.3 No waiver will be effective unless in writing and signed by the waiving Party. A failure or delay in exercising any right will not operate as a waiver.

16.4 If any provision of this Agreement is held to be invalid or unenforceable, that provision will be enforced to the maximum extent permitted, and the remaining provisions will remain in full force and effect.

16.5 This Agreement may be executed in counterparts, including by electronic signature, each of which will be deemed an original and together will constitute one instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

Red Oak Analytics, Inc.

By: _____

Name: _____

Title: _____

Date: _____

Northwind Retail Ltd.

By: _____

Name: _____

Title: _____

Date: _____